DIVISION BENCH **ITEM NO.107**

IN THE NATIONAL COMPANY LAW TRIBUNAL,
ALLAHABAD BENCH, PRAYAGRAJ
(Counsel Appear through video
conferencing/Physical Hearing (Hybrid Mode):

CP(CAA)No.10/ALD/2022 in
CA (CAA) No. 3/ALD/2022
(2nd Motion)
Under Section 230-232 of the Companies Act, 2013

In the matter of Scheme of Amalgamation between:

A-ONE AGRIFOODS AND BEVERAGES PVT LTD
(CIN: U74110UP2010PTC039909)
……. **Applicant Transferor Company No.1**

AND

BROADWAY BEVERAGES PRIVATE LIMITED
(CIN: U55100UP2012PTC048947)
……. **Applicant Transferor Company No.2**

CHRONICLE FOODS PRIVATE LIMITED
(CIN: U55100UP2011PTC044184)
……. **Applicant Transferor Company No. 3**

CRISPY EDIBLES ANDBEVERAGES PRIVATE LIMITED
(CIN: U15122UP2010PTC040383)
……. **Applicant Transferor Company No. 4**

CURE CULTIVATORS PRIAVATE LIMITED
(CIN: U74110UP2012PTC050123)
……. **Applicant Transferor Company No. 5**

MARSHMALLOW PRODUCTS PRIVATE LIMITED
(CIN: U15122UP2012PTC050112)
……. **Applicant Transferor Company No. 6**

SANDSTONE MANUFACTURES PRIVATE LIMITED
(CIN: U74110UP2014PTC063077)
……. **Applicant Transferor Company No. 7**

SCRABBLE WHEAT & FLOURS PRIVATE LIMITED
(CIN: U74110UP2014PTC063078)
……. **Applicant Transferor Company No. 8**

TEAKWOOD INDIA SALES PRIVATE LIMITED
(CIN: U74110UP2014PTC062563)
……. **Applicant Transferor Company No. 9**

TRUESOLUTIONS MULTISERVICES PRIVATE LIMITED
(CIN: U15122UP2012PTC050415)
……. **Applicant Transferor Company No. 10**

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TULSI AGRIFOODS PRIVATE LIMITED
(CIN: U15122UP2010PTC042242)

……. **Applicant Transferor Company No. 11**

VOGUE GLOBAL MERCHANTS PRIVATED LIMITED
(CIN:U74110UP2014PTC062553)

……. **Applicant Transferor Company No. 12**

WITH

SUPERLATIVE WINES PVT LTD
(CIN: U74900UP2007PLC069247)

……. **Applicant Transferee Company**

Order delivered on: 13.02.2023

Coram: **HON'BLE MR. PRAVEEN GUPTA, MEMBER (JUDICIAL)**
HON'BLE MR. ASHISH VERMA, MEMBER (TECHNICAL)

Present through video conferencing/Physical hearing (Hybrid Mode):

For the Applicant Companies	: Mr. Anurup Dutta
For OL/RD (NR)	: Mr. Ajit Kumar Singh, AOL
For ROC	: Mr. Krishna Dev Vyas, Adv.

Per: Mr. Praveen Gupta, Member (Judicial)

ORDER

1. This is a joint Second Motion company petition filed by the Applicant Companies, namely, **A-One Agrifood and Beverages Pvt. Ltd. (**Applicant Transferor Company No.1), **Broadway Beverages Private Limited. (**Applicant Transferor Company No.2), **Chronicle Foods Private Limited (**Applicant Transferor Company No.3), **Crispy Edibles Andbeverages Private Limited (**Applicant Transferor Company No.4), **Cure Cultivators Priavate Limited (**Applicant Transferor Company No.5), **Marshmallow Products Private Limited (**Applicant Transferor Company No.6), **Sandstone Manufactures Private Limited (**Applicant Transferor Company No.7), **Scrabble Wheat & Flours Private Limited (**Applicant Transferor Company No.8), **Teakwood India Sales Private Limited (**Applicant Transferor Company No.9), **Truesolutions Multiservices Private Limited (**Applicant Transferor Company No.10), **Tulsi Agrifoods Private Limited (**Applicant Transferor Company No.11), **Vogue Global Merchants Privated Limited (**Applicant Transferor Company

-Sd- ***-Sd-***

No.12), and **Superlative Wines Pvt. Ltd.** (Applicant Transferee Company) in terms of Rule 16 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 (for Brevity "Rules).

2. The petitioner companies have prayed for sanctioning of the Scheme of Arrangement in the petition and notices to be issued to the authorities concerned in relation to the date of hearing of the petition and calling for objections.
3. The First Motion application seeking directions for Dispensing with the meetings of the Equity Shareholders, Secured Creditors of the Petitioner No.1 to 13, Unsecured Creditors of Petitioner no. 1 to 12, was filed before this Tribunal. It was further prayed to convene separate meetings of the Unsecured Creditors of Petitioner Company No.13 vide Company Application No. CA (CAA) No. 3/ALD/2022 and based on such application moved under Sections 230-232 of the Companies Act, 2013, (for brevity, the 'Act') necessary directions were issued on 16.03.2022**.** In the order dated 16.03.2022, the meetings of the Equity Shareholders, Secured Creditors of the Petitioner No.1 to 13, Unsecured Creditors of Petitioner no. 1 to 12, were dispensed with for the reasons mentioned in the aforesaid order. Additionally, this Tribunal directed for holding of meetings of the Unsecured Creditors of Petitioner Company No.13 separately on **27th April, 2022 at 01 p.m.** at the **Conference Room First Floor, Hotel Radisson Blu, Sector 18, Noida-201301 (Uttar Pradesh)**. The separate meetings of Unsecured Creditors of Petitioner Company No.13 was duly convened, wherein the scheme of amalgamation was considered and approved without any modification.
4. The main objects, date of incorporation, authorized and paid-up share capital, and the rationale of the Scheme have been discussed in detail in the order dated 16.03.2022.
5. Notices are to be issued accordingly in the present petition by the Petitioner Companies, within two weeks to the following Authorities namely, (a) Central Government through Regional Director, New Delhi; (b) Registrar of Companies, Uttar Pradesh; (c) Jurisdictional Income Tax Authority; (d) Official Liquidator, Allahabad by mentioning the PAN of the Company along with a copy of this petition by speed post immediately.

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6. Mr. Krishna Dev Vyas, Ld. Counsel physically present and accepts the notice on behalf of ROC. Let additional notice be issued to the concerned ROC, as mentioned in para above.
7. In addition to the above public notice, the notice of hearing will be advertised in "Financial Express" Delhi & Lucknow Edition in English language, and "Jansatta" Delhi & Lucknow Edition in Hindi language, having wide circulation over the area where the registered office of the companies are situated by not less than 10 days before the next date fixed for hearing.
8. The petitioner companies shall at least 7 days before the date of hearing of the petition, file an affidavit of service of notice giving details of newspaper publication with newspaper clippings as well as specifying the service of notices on the authorities mentioned above. Objections, if any, to the 'Scheme' contemplated by the authorities to whom notice has been given, may be filed on or before the date of hearing fixed herein, failing which, it will be considered that there is no objection to the approval of the 'Scheme' on the part of the authorities and this Tribunal will proceed in the matter, subject to other conditions being satisfied as may be applicable under the Companies Act, 2013 and relevant rules framed thereunder. The petitioner companies shall also file an affidavit stating the objections received from public pursuant to publication of notice of hearing in the newspapers.
9. The next date of hearing of the petition shall be on 22nd March, 2023 for consideration of the approval of the scheme as contemplated between the petitioner companies.
10. The registry shall also report before the date fixed as to whether any objection has been received to the proposed 'Scheme'.

-Sd-
(Ashish Verma)
Member (Technical)

-Sd-
(Praveen Gupta)
Member (Judicial)

February 13, 2023

Bipul Kumar Tiwari
(Stenographer)